

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DUSTIN GROSE

Plaintiff,

AMENDED
COMPLAINT IN
CIVIL CASE

V.

JURY TRIAL
DEMANDED
CASE NUMBER:
CV 07 4751

CITY OF NEW YORK, P.O. NICHOLAS HORON,
P.O. JOHNNY ARROYO, SGT. STEVEN WEISS, P.O.
KATHERINE CASTANDENA, DET. CHRISTOPHER COLON,
DET. SALVATORE FORMICA

Defendant(s)
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Plaintiff, DUSTIN GROSE, by his attorney, Adrian A. Ellis, Esq., alleges as follows:

1. INTRODUCTION

1. This action is brought pursuant 42 U.S.C. Section 1983 to vindicate the civil rights of DUSTIN GROSE. The plaintiff contends that the defendants maliciously abused the process against him by the assault and battery of plaintiff, the false imprisonment of the plaintiff, the invasion of privacy of the plaintiff, the defamation of the plaintiff. Defendants were acting under the color of state law and pursuant to municipal customs practices and policies when they undertook the aforementioned acts against plaintiff.

11. JURISDICTION

2. This court has jurisdiction over this action under 42 U.S.C. Section 1983 and the 6th, 4th, 5th and 14th Amendment of the Constitution of the United States, Venue is proper, as the operative events occurred within this judicial district.

111. PARTIES

3. Plaintiff, DUSTIN GROSE, resides in Kings County and he sues on his own behalf.
4. Defendants the City of New York is a municipality that is incorporated under the laws of the State of New York. Its principle place of business is located in New York, New York, its actions and those of its agents must conform to the dictates of the Constitution of the United States. It may sue and be sued, and at all time relevant times herein, acted under color of state law and pursuant to its own policies, practices and customs.
5. Defendant **P.O. Nicholas Horon, P.O. Katherine Castaneda, P.O. Johnny Aroyo, SGT. Steven Weiss, DET. Christopher Colon, DET. Salvatore Formica**, at all relevant times, were employed by the City of New York as a police officers. Their actions must conform to the dictates of the Constitution of the United States. They are sued in their individual capacities for violating the plaintiff's civil rights while acting under the color of state law and/or acting pursuant to policies, practices and customs of the City of New York.

IV. FACTUAL AVERMENTS

6. Defendants, all of whom were acting under the color of state law and/or pursuant to policies, practices and customs of the City of New York, violated plaintiff's civil rights in the following ways:
 - a. On January 13, 2007 at approximately 5:15 A.M. at 838 Hancock Street, Brooklyn, New York 11233 the plaintiff was at home when his parents urged him to go to the hospital to seek psychiatric treatment. The plaintiff is diagnosed as suffering from mild schizophrenia and bi-polar. The plaintiff had not taken his medication and his parents wanted him to seek medical attention. In furtherance of the same his parents wanted him to seek medical attention. In furtherance of the same his parents called 911 for an ambulance but members of the New York City Police Department arrived first. When the police arrived the plaintiff was lying down in his bed. Two police officers upon information and belief, P.O. Nicholas Horon and P.O. Katherine Castaneda instructed the plaintiff to put his clothes on and come outside. After some verbal coaxing the plaintiff complied. When the plaintiff walked outside there were four additional police officers outside his home. The Plaintiff whilst waiting for the ambulance told the police officers he wanted to return inside to sleep to which the police responded he could not do that. The plaintiff asked his mother if he could return inside to sleep to which she responded that he could not do that. The plaintiff then asked his mother again if he could return inside to sleep to which she responded he has to wait for the ambulance outside. The plaintiff then entered into an argument with the police officers about him returning to his room. Suddenly one of the police

officers, upon information and belief P.O. Nicholas Horon punched the plaintiff in the chest and threw him to the ground. At this time other police officers, including P.O. Johnny Arroyo and P.O. Katherine Castaneda joined in kicking and punching the plaintiff who was on the ground. The plaintiff was subjected to a police officer placing his foot on top of the plaintiff's head, whilst other police officer's were kicking and punching him, SGT Steven Weiss, DET Christopher Colon, DET Salvatore Formica, arrived at the scene and joined the assault of the plaintiff. When the plaintiff was handcuffed he was bleeding profusely from his nose and mouth and his face was badly bruised. After the plaintiff was handcuffed he was placed in a strait jacket and was laid on the ground until the ambulance finally arrived.

FIRST CLAIM FOR RELIEF

7. Defendant's action against plaintiff was undertaken pursuant to municipal policies, practices and customs of using physical force against the citizenry when deemed necessary.
8. As a result of defendants actions the plaintiff is fearful of all police officers and is unable to respect the police force and the purported purpose to "protect and serve".
9. The conduct of defendants in maliciously abusing process against the plaintiffs was outrageous and was done with a total and utter reckless indifference to plaintiff's protective rights, entitling plaintiff to award of punitive damages as against the individual defendants.

10. The force used against the plaintiff was brutal, excessive and utterly unnecessary since the plaintiff, despite being belligerent had been complying with the police officers
11. Solely as a result of these actions, plaintiff was:
 - a. Physically abused by the police.
 - b. Suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation;
 - c. Has continued to suffer from mental and emotional distress as a result of the unlawful conduct of the defendants and;
 - d. Has been caused to fear repetition of the unlawful conduct by the defendants or by other police officers.
12. Each of the defendants, jointly and severally, acted maliciously, willfully and wantonly and outside the scope of their jurisdiction, although under the color of law, and violated the rights of the plaintiff.
 - a. To be free from unreasonable search and seizure;
 - b. To be free from excessive force;
 - c. To be free from assault and battery;
 - d. To be free from intentional infliction of great emotional distress;
 - e. To be free from negligence in the performance of police duties; and
 - f. To due process of law
13. All of these rights are secured to plaintiff by the provision of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by 42 U.S.C. §§ 1983, 1988.

14. As a result of the defendant's conduct plaintiff has suffered damage and injury.

SECOND CLAIM FOR RELIEF

15. Plaintiff repeats and reiterates each and every allegation contained in the paragraphs of this complaint designated "1" through "17" inclusive, with the same force and effect as though each were fully set forth at length here.

16. The defendants intentionally and for the purpose of causing severe mental distress conducted themselves towards the plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

17. The defendants recklessly conducted themselves toward the plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

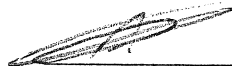
PRAYER

Plaintiff demands judgment against the defendants for:

1. Compensatory damages in an amount that the trier of fact considers just and fair;
2. Punitive and exemplary damages in an amount that the trier of fact considers sufficient to punish and deter each defendant against whom these damages are awarded;
3. Costs of suit;
4. Reasonable attorney's fees; and
5. All other relief that is just and proper

Dated: Brooklyn New York
April 11, 2008

Respectfully Submitted
Adrian A. Ellis, LLC.,

A handwritten signature in dark ink, appearing to be 'Adrian A. Ellis', is written over a horizontal line.

Adrian A. Ellis (5276)

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AMENDED COMPLAINT IN CIVIL CASE

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